

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: 32156/19

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ARIANA SMITH,

**AMENDED VERIFIED
COMPLAINT**

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE PEDRO RAMOS AND
POLICE OFFICER AUSTIN DENIO OF THE 43RD PRECINCT,

Defendant(s),

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Plaintiff, by and through her attorney, Law Office of Andrew C. Laufer, PLLC
complaining of the Defendants herein, upon information and belief, respectfully show to this
Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiffs were residents of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants DETECTIVE PEDRO RAMOS AND POLICE OFFICER AUSTIN DENIO, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That an examination under oath was held on July 2, 2019 by the CITY OF NEW YORK pursuant to Municipal Law 50-h.

That at all time herein mentioned, DETECTIVE PEDRO RAMOS AND POLICE OFFICER AUSTIN DENIO, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

7. That at all times herein mentioned, DETECTIVE PEDRO RAMOS AND POLICE OFFICER AUSTIN DENIO were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

8. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

9. On or about March 28, 2019, at approximately 1:08 p.m., Plaintiff Ariana Smith was lawfully at the corner of Stickball Boulevard and Seward Avenue, in the County of Bronx, State of New York.

10. Plaintiff was at the said location due to a fire drill being conducted by her school, Gotham Collaborative High School.

11. At the time plaintiff was assaulted, battered, and victimized by Defendants who engaged in excessive force by pushing and punching her, a 16-year-old girl, in the face, left eye, and head for no apparent reason.

12. The aforementioned assault and battery were witnessed by numerous individuals at the location.

13. Thereafter, the minor plaintiff was taken to Bronx-Lebanon Hospital Center for treatment.

14. The individual Defendants, DETECTIVE PEDRO RAMOS AND POLICE OFFICER AUSTIN DENIO, under color of state law, subjected Plaintiffs to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiffs of their rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of their person, including the excessive use of force; and (b) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE USE OF
EXCESSIVE FORCE UPON PLAINTIFF

15. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

16. That on or about March 28, 2019, at approximately 1:00 pm, Defendants, jointly and severally in their capacity as police officers, wrongfully stopped, assaulted and battered plaintiff about her person, causing her physical pain and mental suffering. At no time did Defendants have legal cause to assault, batter, victimize or engage in excessive use of force in their apprehension of plaintiff, nor did plaintiff consent to this illegal touching nor was or privileged by law.

17. As a result of the aforementioned actions, Defendants deprived plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, and Fourteenth Amendments and New York State law.

18. As a result of the aforementioned actions, Defendants deprived plaintiff of her right against the use of excessive force, assault, and battery against her person secured by the Constitution and Laws of the United States of America, the Fourth, Fifth, and Fourteenth Amendments and New York State law.

19. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to plaintiff's rights.

20. That by reason of the assault, battering, and victimization of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in her credit and circumstances and was prevented and hindered from performing and transacting her necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

21. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1983, 1988, and under New York State Law.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983

22. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

23. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

24. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to

prevent or stop those acts and/or allowed those acts to continue.

25. Defendants assaulted, battered, and victimized plaintiff in the absence of any evidence of the necessity to use force, notwithstanding their knowledge that said excessive use of force would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

26. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

27. On or about March 28, 2019, Defendants did stop, seize, search, assault and commit a battery and grab the person of plaintiff without probable cause to do so. They did physically seize the person of plaintiff in an unlawful and excessive manner.

28. AS was assaulted, battered, victimized without the Defendants' possessing probable cause to do so.

29. The above actions of Defendants resulted in plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to her person.
- b. Freedom from battery to her person.
- c. Freedom from the use of excessive force.

30. The Defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the AS's rights.

31. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of use of force, that its police officers should only use reasonable force to effectuate compliance.

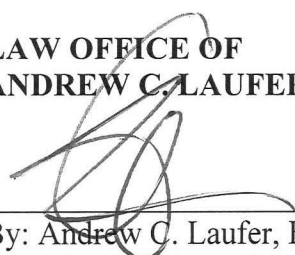
32. The direct and proximate results of the Defendants' acts are that plaintiff suffered severe and permanent injuries of a physical and psychological nature. She was forced to endure pain

and suffering to her detriment.

WHEREFORE, Plaintiffs demand judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiffs further demand punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
January 10, 2022

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiffs
264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.: 32156/19

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ARIANA SMITH,

Plaintiff(s),

VERIFICATION

-against-

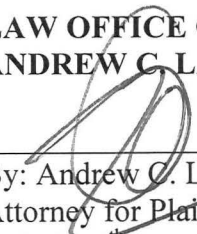
THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE PEDRO RAMOS AND
POLICE OFFICER AUSTIN DENIO OF THE 43RD
PRECINCT,Defendant(s),
-----X

ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the Plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the Plaintiffs is that the Plaintiffs do not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
January 10, 2022

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiffs
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New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
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ARIANA SMITH,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT,
DETECTIVE PEDRO RAMOS AND POLICE OFFICER AUSTIN
DENIO OF THE 43rd PRECINCT,

Defendants,

SUPPLEMENTAL SUMMONS AND AMENDED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for PlaintiffOffice and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated: _____

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on☐ **NOTICE OF SETTLEMENT**that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on _____ at _____ M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer